

Court No. - 3

Case :- WRIT - C No. - 21804 of 2016

Petitioner :- Smt. Afifa Fatima

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Pradeep Verma

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Vinod Kumar Misra,J.

Shri Mahboob Ahmad has accepted notice on behalf of respondent nos.2 and 3 may obtain instructions in this matter within a week with respect to the allegation made in the writ petition that recovery proceedings have been initiated without any provisional assessment bill.

Put up as fresh on 20.05.2016.

Till then, no coercive steps shall be taken against the petitioner in pursuance of the impugned order.

Order Date :- 12.5.2016

m.a.

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Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Pradeep Verma

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Prashant Kumar,J.

By means of this petition filed under Article 226 of the Constitution of India, petitioner has challenged the citation dated 25.2.2016 issued by respondent no.2.

The challenge is merely on the ground that recovery proceedings have been initiated without providing any provisional assessment bill and notice and opportunity to contest the same.

When the matter was taken up as fresh on 12.5.2016, Sri Mahboob Ahmad, who has accepted notice on behalf of respondent nos.2 and 3 was required to obtain instructions with respect to the grounds set out in the writ petition that recovery proceedings have been initiated without any provisional assessment bill. Today, when the matter has been called out, learned counsel for the respondents has passed on a copy of the instructions received by him which are taken on record. Copy of the instructions passed on to us contains a provisional assessment bill assessing a sum of Rs.2,61,780/- and a provisional notice dated 5.12.2015. However, there is nothing on record to indicate that the provisional assessment notice was ever sent to the petitioner as there is no indication of mode and manner of dispatching the same nor does the provisional assessment to indicate any date for hearing in the matter.

Sri Mahboob Ahmad, learned counsel for the respondents contends that since the petitioner did not file any objection to the provisional assessment, as such it was treated to be final and accordingly a recovery certificate was issued.

Learned counsel for the petitioner points out that since the copy of the provisional assessment notice was never received by her as such she could not submit her reply and, thus, entire proceedings are vitiated.

Since there is no existing material on record with the instructions to indicate the mode and manner of sending the provisional assessment. The

only presumption which can be drawn that it was sent to the petitioner. Further, the provisional assessment also does not indicate any date for hearing.

This Court in the case of **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ, 660 (DB)** has considered the provisions of the U.P. Electricity Supply Code, 2005 to be followed for assessment in case of theft of electricity. One of the essential requirement is that provisional notice should invite objections and also indicate a date and time for hearing of the consumer. In the present case, we find that the provisional assessment notice does not appears to have been sent to the petitioner nor had specified the date and time for hearing, which was required under the U.P. Electricity Supply Code, 2005. The procedure adopted by the respondents in making provisional assessment and issuance of recovery certificate is de-horse the provisions of the U.P. Electricity Supply Code, 2005 and is in gross violation of clause 6.8(b) of the said Code and, thus, the impugned recovery proceedings initiated against the petitioner cannot be sustained.

Consequently, the writ petition is allowed. The impugned recovery citation dated 25.2.2016 is hereby quashed. However, it shall be open to the respondents to proceed and to make an assessment after issuing a provisional assessment notice to the petitioner and considering her objection thereto with a date for hearing setting out reasons to meet the objections of the petitioner.

Order Date :- 27.5.2016

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